

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK=====X Index No.:
LAMONT BRADLEY,

Plaintiff,

Plaintiff designates New York
County as the place of Trial.

-against-

Venue is based upon
Location of Occurrence

CITY OF NEW YORK and P.O. ARTUR ESPENBURG,

Defendant(s).

=====X **SUMMONS**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York), and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 5, 2013**Defendant(s):****CITY OF NEW YORK**
100 Church Street
New York, NY 10007**P.O. ARTUR ESPENBURG**
c/o NYPD PSA 5
221 E. 123rd Street
New York, NY 10035

Yours etc.,

The Law Offices of
ANTHONY IADEVAIA
Attorneys for Plaintiff
1932 Second Avenue
New York, New York 10029
(212) 996-8700

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X
LAMONT BRADLEY,

Index No.

Plaintiffs,

VERIFIED COMPLAINT

- against -

CITY OF NEW YORK and P.O. ARTUR ESPENBURG,

Defendants.

=====X

Plaintiff, LAMONT BRADLEY, by his attorneys, The Law Offices of
ANTHONY IADEVAIA, complaining of the above named Defendants, alleges the following
upon information and belief:

AS AND A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, Plaintiff was, and still is, a
resident of the County, City and State of New York.
2. That at all times hereinafter mentioned, Defendant, the CITY OF NEW
YORK, was and still is a municipal corporation created pursuant to the laws of the State of New
York.
3. That Plaintiff served a Notice of Claim upon the CITY NEW YORK
within ninety (90) days after the causes of action herein accrued.
4. That this action is commenced within one (1) year and ninety (90) days
after the causes of action herein accrued.
5. That a hearing, pursuant to General Municipal Law Section 50H, was held
on August 30, 2013.

6. That at least thirty (30) days have elapsed since the aforesaid Notice of Claim was served upon the Defendant, CITY OF NEW YORK and that the Defendant has neglected and/or refused to make adjustments or payment in response thereto.

7. That at all times hereinafter mentioned, Defendant, CITY OF NEW YORK, owned and/or leased a 2001 motor vehicle bearing New York State license number "FH23051".

8. That at all times hereinafter mentioned, Defendant, CITY OF NEW YORK, employed Defendant, ARTUR ESPENBURG, as a police officer.

9. That at all times hereinafter mentioned, Defendant, CITY OF NEW YORK, permitted and allowed Defendant, ARTUR ESPENBURG, to operate the aforesaid motor vehicle as part of his employment as a police officer.

10. That Defendant, ARTUR ESPENBURG,, was operating the aforesaid motor vehicle at or near the intersection of Third Avenue and East 112th Street, New York, NY, on May 14, 2013.

11. That at the aforesaid time and place, Defendant, ARTUR ESPENBURG, disregarded and operated his motor vehicle contrary to the traffic control devices in place at the aforesaid location.

12. That at the aforesaid time and place, Defendant, ARTUR ESPENBURG,, negligently and carelessly operated the aforesaid motor vehicle.

13. That Defendant, CITY OF NEW YORK, negligently hired and failed to properly train and supervise Defendant, ARTUR ESPENBURG,.

14. That at the aforesaid time and place, Plaintiff, LAMONT BRADLEY, was

operating his motor vehicle on Third Avenue at the aforesaid intersection in accordance with traffic control directives.

15. That at that aforesaid time and place, Defendants' motor vehicle entered the aforesaid intersection causing a collision with Plaintiff's motor vehicle.

16. That as a result of the aforesaid collision, Plaintiff, LAMONT BRADLEY, was injured.

17. That at the aforesaid time and place, Defendants herein, their agents, servants, employees negligently, carelessly and recklessly operated, managed, maintained, and controlled the aforesaid motor vehicles, so as to cause Plaintiff, LAMONT BRADLEY, to sustain the severe, serious and permanent injuries.

18. That the occurrence and the injuries sustained by the Plaintiff, LAMONT BRADLEY, were caused solely by the negligence of the Defendants, its agents, servants, and/or employees, without any negligence on the part of the infant Plaintiff contributing thereto.

19. This action falls within one or more of the exceptions set forth in CPLR 1602.

20. Plaintiff, LAMONT BRADLEY, has sustained a serious injury as defined in subdivision (d) of Section 5102 of the Insurance Law, or economic loss greater than basic economic loss defined in subdivision (a) of Section 5102 of the Insurance Law.

21. That solely by reason of the recklessness and carelessness of the Defendants as aforesaid, the Plaintiff, LAMONT BRADLEY, became sick, sore, lame, bruised and disabled, received serious, permanent and severe injuries in and about diverse parts of her

person and experienced great pain and suffering and continues to suffer from said injuries; that said Plaintiff has been informed and verily believe said injuries to be of a permanent nature and the Plaintiff is and will be incapacitated for a long period of time and Plaintiff was compelled to and did seek medical aid, attention and treatment and will require further medical aid, treatment and care in the future; and Plaintiff was in other ways damaged.

AS AND A SECOND CAUSE OF ACTION

22. Plaintiff, LAMON BRADLEY, repeats and reiterates the allegations contained in paragraphs numbered "1" to "21" with the same force and effect as alleged.

23. That at that aforesaid time and place, the Plaintiff, LAMONT BRADLEY, was the owner of a 1992 Toyota motor vehicle.

24. That at the aforesaid time and place, Defendants herein, their agents, servants, employees negligently, carelessly and recklessly operated, managed, maintained, and controlled their motor vehicle so as to cause damage to Plaintiff's motor vehicle.

25. That the total damage sustained by Plaintiff for his motor vehicle is in excess of \$2,500.00 plus towing and storage.

WHEREFORE, Plaintiff, LAMONT BRADLEY, demands judgment against the Defendants in the First and Second causes of Action. Damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction. Damages for the Plaintiff are sought in an amount to be determined upon trial of this matter, together with costs and disbursements.

Dated: New York, New York
September 4, 2013



ANTHONY IADEVAIA

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

LAMONT BRADLEY, being duly sworn, deposes and says:

1. I am the Plaintiff/Petitioner/Claimant in the foregoing action.

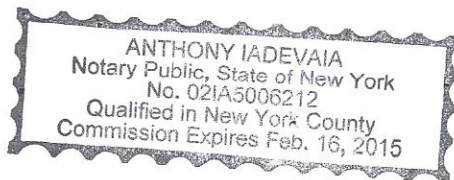
2. I have read the foregoing COMPLAINT and know the contents thereof. It

is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

Lamont Bradley
LAMONT BRADLEY

Sworn to before me this 5
day of Sept, 2013.

[Signature]
NOTARY PUBLIC



Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

LAMONT BRADLEY,

Plaintiff(s),

-against-

CITY OF NEW YORK and P.O. ARTUR ESPENBURG.

Defendant(s).

SUMMONS & VERIFIED COMPLAINT

THE LAW OFFICES OF ANTHONY IADEVAIA

Attorneys for Plaintiff(s)

1932 Second Avenue
New York, New York 10029
(212) 996-8700

To:

Service of a copy of the within
is hereby admitted.

Attorney for

Dated:.....201..

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice law in the court of the State of New York, certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 9-5-13

By: 